

TENTATIVE RULING

Monterey Bay Emergency Partners

v.

Erin Sullivan, M.D., Inc.

26CV001118

Defendant's Special Motion to Strike Complaint (Code Civ. Proc. § 425.16)

Hearing Date: July 10, 2026

Defendant Erin Sullivan, M.D., Inc. ("Defendant") moves to strike the operative Complaint of Plaintiff Monterey Bay Emergency Partners ("Plaintiff") under the anti-SLAPP (strategic lawsuit against public participation) statute. [Code Civ. Proc. § 425.16.] In doing so, Defendant argues that Plaintiff's attempt to expel Defendant judicially is simply an effort to prevent the protected patient-safety advocacy of Defendant's sole shareholder, Erin Sullivan, M.D. [See Motion at 1:4-9.] Plaintiff opposes and describes this case as a "business dispute. Nothing more, nothing less," and asserts it is unrelated to protected activity. [Opp. at 1:2-13.]

As explained below, the Court finds that Defendant has met the first prong of the anti-SLAPP analysis because the challenged cause of action stems from protected activity. However, Plaintiff has shown a likelihood of prevailing on its judicial-expulsion claim. The motion is therefore **DENIED** and Defendant has 10 days from the date of the Court's signed order to file and serve their Answer to the Complaint.

Background.

Plaintiff is a California general partnership consisting of 24 physician-owned professional corporations providing emergency medical services at Community Hospital of the Monterey Peninsula ("CHOMP"). [Complaint at ¶ 11.] Defendant is a member of that partnership. [*Id.* at ¶ 9.] Dr. Sullivan is "Defendant's sole Partner Shareholder." [*Ibid.*] Plaintiff alleges that "Dr. Sullivan is thus solely responsible for Defendant's conduct in performing and abiding by the responsibilities of Defendant." [*Ibid.*]

Plaintiff in its Complaint alleges that Dr. Sullivan, through Defendant, has engaged in a pattern of conduct that has severely damaged the partnership's ability to function. [Complaint at ¶¶ 3, 14-33.] The allegations include: (1) chronically adversarial and confrontational interactions with partners and CHOMP staff [*id.* at ¶ 3]; (2) persistent refusal to collaborate on addressing complaints or operational concerns [*id.* at ¶¶ 26, 28]; (3) disruptions so significant that multiple partners have stepped down from leadership roles or refused to assume them [*id.* at ¶¶ 14-15]; (4) deterioration of professional relationships leading to recruitment and retention problems [*ibid.*]; and (5) numerous interpersonal conflicts with scribes, nurses, radiology staff, and other physicians resulting in formal complaints [*id.* at ¶¶ 27, 30-32]. Plaintiff alleges that, taken together, Dr. Sullivan's conduct has made it "not reasonably practicable to carry on the business in Partnership with Defendant," warranting judicial expulsion under paragraph (5)(C) of Corporations Code section 16601.

In response to the Complaint, Defendant filed a special motion to strike, contending that Plaintiff's lawsuit against it is strategic retaliation for, among other things, Dr. Sullivan's ongoing advocacy for patient safety, including complaints about the deficient healthcare environment, reports to Plaintiff, petitions to CHOMP, or complaints to the California Department of Public Health ("CDPH"), which she argues are fully protected activities under the anti-SLAPP statute. [See Motion at 7:24-26.]

Legal Standards.

A defendant can file a special motion to strike any cause of action that arises from acts taken in support of their right to petition or free speech under the United States or California Constitution, related to a public issue. [*Brodeur v. Atlas Entertainment, Inc.* (2016) 248 Cal.App.4th 665, 673-674.] Specifically, this includes any written or spoken statement under governmental consideration or concerning a public interest issue. [Code Civ. Proc. § 425.16, subds. (e)(2)-(3).] It also covers other conduct that supports the exercise of these constitutional rights in connection with public or public interest issues. [*Id.* at subd. (e)(4).]

Trial courts use a two-step process when ruling on an anti-SLAPP motion. First, it determines if the moving party has shown that the challenged causes of action stem from protected activity. [*Brodeur*, 248 Cal.App.4th at 674; *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67.] If this threshold requirement is satisfied, the burden then shifts to the party opposing the motion to prove a likelihood of winning their claims. [*Ibid.*] "In making these determinations, the trial court considers 'the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.'" [*Brodeur*, 248 Cal.App.4th at 674 (citing Code Civ. Proc. § 425.16, subd. (b)(2) and *HMS Capital, Inc. v. Lawyers Title Co.* (2004) 118 Cal.App.4th 204, 212).]

Discussion.

Initially, Plaintiff argues that Dr. Sullivan is not a party to this case to distinguish the motion's claim that Dr. Sullivan's "personal rights" have been chilled. [See Opp. at 5, fn. 7.] Defendant's corporate status is irrelevant here. First, a corporation is among the "persons" protected by the anti-SLAPP statute. [*Mattel, Inc. v. Luce, Forward, Hamilton & Scripps* (2002) 99 Cal.App.4th 1179, 1188.] Additionally, Dr. Sullivan's alleged conduct forms the basis of the Complaint. [Complaint at ¶ 11; see also Opp. at 5:8-9.] Therefore, whether or not Defendant is a corporation and Dr. Sullivan is not a named party does not impact Defendant's right to file an anti-SLAPP motion.

1. Evidentiary objections.

The Court's ruling on each party's evidentiary objections is as follows:

DEFENDANT'S OBJECTIONS TO DR. SULLIVAN'S DECLARATION		
No(s).	Cite	Ruling
2	¶ 4	SUSTAINED. Irrelevant.

DEFENDANT’S OBJECTIONS TO DR. SULLIVAN’S DECLARATION		
No(s).	Cite	Ruling
3	¶ 5	SUSTAINED for lack of personal knowledge as to those portions regarding the health care environment being ripe with inappropriate interactions. Otherwise, OVERRULED as to Dr. Sullivan’s statements based on her personal observations.
3 (sic)	¶ 6	OVERRULED.
4	¶ 7	OVERRULED.
5	Exh. 1	SUSTAINED. Irrelevant.
6-9	¶¶ 8-9, 11	OVERRULED.
10	¶ 5	SUSTAINED. Inadmissible hearsay, lacks foundation, and is irrelevant.
11-17	¶¶ 17-21 Exhs. 3-4	OVERRULED.
18	¶ 23 (“...Such grueling)	SUSTAINED. Irrelevant.
19-24	¶ 23 (“...Kavitha) ¶¶ 28-31 Exh. 9	OVERRULED.

PLAINTIFF’S OBJECTIONS		
No(s).	Cite	Ruling
Dr. Andrew Ortega Declaration		
1-8	Pages 3-4	OVERRULED.
9	4:13-20	SUSTAINED. Inadmissible speculation.
10	4:21-23	OVERRULED.
11	5:6-7	SUSTAINED. Inadmissible speculation.
12	5:12-14	OVERRULED.
Dr. Rory Smith Declaration		
1-8	Pages 3-4	OVERRULED.
9	4:13-17	SUSTAINED. Inadmissible speculation.
10	4:17-18	OVERRULED.
11	4:18-22	SUSTAINED. Inadmissible speculation.
12-20	Pages 4-6	OVERRULED.
Dr. Sameer Bakhda Declaration		
1-4	Pages 2-3	OVERRULED.
5	4:3-4	SUSTAINED. Inadmissible speculation.

2. Prong One: Arising from Protected Activity.

Defendant has demonstrated that the cause of action in the Complaint for judicial expulsion [Corp. Code § 16601] stems from protected activity. Although the Complaint centers on partnership issues, it explicitly references Dr. Sullivan’s pattern of filing complaints—including those “outside of [Defendant’s] control”—and conflicts related to her method of raising patient-care concerns. [Complaint at ¶¶ 21, 26-27.] Dr. Sullivan provides background to

these allegations, including that she made multiple complaints to CHOMP leadership, CDPH, and the Joint Commission regarding patient-safety issues. [See, e.g., Dr. Sullivan Decl. at ¶¶ 7-9, 17, 31.] These communications constitute protected petitioning activity. [Code Civ. Proc. § 425.16, subds. (e)(2)-(4).] Courts may consider declarations to evaluate whether claims arise from protected conduct. [See *Brodeur*, 248 Cal.App.4th at 674; *Navellier v. Sletten* (2002) 29 Cal.4th 82, 89; *Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 935.]

Defendant has met its burden of demonstrating that the Complaint is based on Dr. Sullivan's protected activity under the anti-SLAPP statute, rather than simply showing that protected activity occurred. [See *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-77; *Park v. Board of Trustees of Cal. State U.* (2017) 2 Cal.5th 1057, 1068.] In fact, many of the Complaint's allegations stem directly from how, when, and to whom Dr. Sullivan made those complaints.

Accordingly, Defendant has met the first prong of the anti-SLAPP analysis. The burden now shifts to Plaintiff to show a likelihood of prevailing on the judicial-expulsion claim.

3. Prong Two: Probability of Prevailing on the Merits.

Plaintiff satisfies its burden under the second prong of the anti-SLAPP analysis because it has produced evidence showing a likelihood of prevailing on its judicial-expulsion claim against Defendant. That claim is based on the impracticality of the parties continuing their partnership. [Complaint at ¶¶ 1-7.]

To overcome an anti-SLAPP motion, Plaintiff must only demonstrate minimal merit—meaning a prima facie case:

To show a probability of prevailing on his claims, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. ... [T]hough the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim.

The plaintiff may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent, admissible evidence.

[*Brodeur*, 248 Cal.App.4th at 678-679 (internal quotes and citations omitted); see also *Navellier*, 29 Cal.4th at 88; *Tuchscher Development Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1235; *Area 51 Productions, Inc. v. City of Alameda* (2018) 20 Cal.App.5th 581, 602.]

Plaintiff has provided prima facie evidence that the Complaint was not primarily filed because of Dr. Sullivan's advocacy, but because the intense and hostile feelings among partners have reached a point where continuing the partnership is no longer feasible. [See *Navarro v.*

Perron (2004) 122 Cal.App.4th 797, 801 (“Where the court determines it is not reasonably practical to carry on the partnership, the court has no discretion to deny a partner’s application to dissolve it” under Corporations Code section 16801, subdivision (5)(C)); *Wallace v. Sinclair* (1952) 114 Cal.App.2d 220, 228 (“Where bitter and antagonistic feeling between partners has developed to the point that the partners cannot continue the partnership to their mutual advantage and both give notice terminating the partnership, a dissolution thereof is the equitable solution of an ugly situation and should be decreed.”).) The admissible evidence concerning Dr. Sullivan’s behavior that harms the partnership includes:

- Twenty-one of the 24 partners have stated they do not want to continue the partnership with Dr. Sullivan. [Dr. Smith Decl. at ¶ 6.]
- Dr. Sullivan’s concerns and her lack of respect for her emergency physician colleagues are clear in her declaration. [Dr. Sullivan Decl. at ¶¶ 6, 9-10, 15, 24, 27.]
- Long-standing interpersonal conflict, including claims of aggressive behavior in clinical settings. [See Dr. Ortega Decl. at ¶ 6.]
- Leadership collapse—several partners refusing or stepping down from leadership roles. [Dr. Ortega Decl. at ¶ 7.]
- The Quality Assurance program was curtailed following Dr. Sullivan’s refusal to sign a non-disclosure agreement and the dissemination of confidential information. [Weaver Depo., Exh. 2 to O’Connor Decl. at 106:17-109:13.]
- Dr. Sullivan’s refusal to collaborate with Plaintiff. [Weaver Depo., Exh. 2 to O’Connor Decl. at 187:23-189:25.]
- Declining morale, recruitment problems, and partners’ reluctance to collaborate due to fear of retaliation or hostile responses. [See Dr. Ortega Decl. at ¶ 6.]

These facts—if credited—highlight the impracticality of dissolution. [*Navarro*, 122 Cal.App.4th 797; *Wallace*, 114 Cal.App.2d 220.] Further, evidence of conduct before 2024 is admissible under Evidence Code sections 1100 and 1101, subdivision (b). As Dr. Sullivan states in paragraph 13 of her declaration, she was part of essentially the same group in a corporate format before Defendant’s creation in July 2024. Therefore, her conduct in that earlier group is relevant.

Defendant argues that Plaintiff’s lawsuit conflicts with public policy under Business & Professions Code section 510, which protects physicians advocating for proper healthcare. While Dr. Sullivan’s advocacy may be protected, Plaintiff’s evidence shows that the main reasons for the claims relate to interpersonal conflicts, refusal to collaborate, quality assurance issues, and challenges in maintaining effective partnerships, rather than the advocacy itself. Although Defendant might successfully defend this case under section 510, at this early stage—which only requires a *prima facie* case—Plaintiff has sufficiently demonstrated a likelihood of success.

Conclusion.

Defendant's Special Motion to Strike is **DENIED**. Plaintiff has shown a likelihood of winning on its cause of action for judicial expulsion under paragraph (5)(C) of Corporations Code section 16601. Defendant has 10 days from the date of the Court's signed order to file and serve their Answer to the Complaint.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.